London Borough of Camden and London Borough of Camden Electoral Registration Officer

Memorandum of Understanding For the purpose of data sharing Between Adult and Health Services and the Electoral Registration Officer

The London Borough of Camden Electoral Registration Officer is legally a different Data Controller to the London Borough of Camden but is employed by the same organisation. This Memorandum is non-binding but constitutes a written agreement setting out the intentions of both data controllers to further the lawful purpose described below, aid appropriate information sharing, and safeguard the integrity and confidentiality of the data concerned. In the circumstances both data controllers agree that due to the close and intertwined nature of the relationships and processing, that a formal Data Sharing Agreement is disproportionate and that a MoU will suffice.

This Memorandum of Understanding sets out the respective roles of the parties and the conditions under which the data sharing is permitted. It is intended to meet the requirements of regulation 35A (3) Representation of the People (England & Wales) Regulations 2001 which requires that a disclosure under that provision may be made only in accordance with a written agreement between the authority and the registration officer regulating the processing of the information, including its transfer, storage, destruction and security.

Regulation 35A provides that the council permitted to disclose to the registration officer, for certain registration purposes, information contained in records held by the council. These are the purposes set out in paragraph 1A of Schedule 2 to the 1983 Act, except for the purpose of verifying information related to a person named in a relevant absent voting application. Paragraph 1A(1) of Schedule 2 to the Representation of the People 1983 Act enables provision to be made authorising or requiring a person to disclose information to another person for the purpose of assisting a registration officer

(1) to verify information relating to a person who is registered or who is named in a registration application.
(2) to ascertain the names and addresses of people who are not registered but who are entitled to be registered; or
(3) to identify those people who are registered but who are not entitled to be registered.

The Electoral Registration Officer confirms that the information requested comes within the scope of their legal powers in Regulation 35 (1) of the Representation of the People (England & Wales) Regulations 2001 which authorises a registration officer to inspect, for the purpose of their registration duties, records kept in any form by Camden.

Purpose: The data is being accessed to allow the ERO to:

- maintain and manage the register of electors (including the public record of electors)
- meet any statutory requirements of the registration officer not listed above and to administer and enforce rules and regulations relating to electoral registration.
- Assistance with voting for persons with disabilities

The personal data will include:

- Name
- Current address and previous address (where recorded or where applicable)
- Date of Birth
- National Insurance Number (where recorded)

- Nationality (where recorded)
- Details of disability and presence on the Sight Loss Register

The data will be provided to the Electoral Registration Officer by provision of Sight Lost Register and other data if applicable via email in a.csv flat file in the format expected by the ERO system. Electoral registration staff will be able to request the information when required, although requests will not be so regular as to be unduly onerous to ASC, and the information will be provided within 5 working days of request.

Retention and Deletion: The data files received will be destroyed once data has been entered into Democracy Counts. The statutory process of the Annual Canvass will check the information held on the register of electors and any potential electors who are identified as no longer being at the property will be archived in the EMS.

Purpose Limitation and Information security. The ERO warrants that they have, will record and will maintain appropriate organisational measures to ensure that ERO staff do not use this data for any other purpose. Information Security for the ERO is provided by the council's Information Security Team and DDS service and will be to the same standards as for other council assets. All those who will handle the disclosed data are bound by the employee code of conduct, have undergone appropriate employee checks as necessary for the role, will only use the information for purposes of their role and no other, will not share the information gained with other services or agencies (save where required to do so by law e.g. safeguarding duties, by court order or with the courts or as part of legal proceedings). Breach of these conditions may result in disciplinary action for breach of the code of conduct.

Agreement:

Agreed:

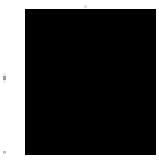


Name: Jamie Spencer

Position Head of Insight, Quality & Financial Services and Caldicott Guardian for Adult Social Care

Date:

Agreed:



Name: Jeanette Pegler

Position: Electoral Services Manager

Date: 28/03/25